

Shikha Singh (Dv) vs Saurabh Singh on 4 October, 2025

IN THE COURT OF SH. ABHISHEK GOYAL, ADDITIONAL
SESSIONS JUDGE-03, CENTRAL DISTRICT, TIS HAZARI
COURTS, DELHI

CNR No.: DLCT01-016855-2024
CRIMINAL APPEAL No.: 436/2024

1. SHIKHA SINGH,
W/o. Shri. Saurabh Singh,
D/o. Shri. Hemraj Khorwal,
R/o. H. No. 4/5182, Krishan Nagar,
Karol Bagh, New Delhi-110005.
2. MASTER RAJBIR SINGH,
Through his mother,
Ms. Shikha Singh.

... APPELLANTS

VERSUS

SAURABH SINGH,
S/o. Late Shri. Ranjit Singh Kuradia,
R/o. H. No. L-231, Jalvayu Vihar,
Sector-25, Noida,
Uttar Pradesh.

... RESPONDENT

Date of filing	:	15.10.2024
Date of institution	:	23.10.2024
Date when judgment was reserved	:	01.07.2025
Date when judgment is pronounced	:	04.10.2025

JUDGMENT

1. The present appeal has been preferred under Section 29 of the Protection of Women from Domestic Violence Act, 2005 (hereinafter referred to as the 'DV Act') against the order dated 31.08.2024 (hereinafter referred to as the 'impugned order'), passed by the learned Judicial Magistrate First Class (Mahila Court)-04/Ld. JMFC (Mahila Court)-04, Central, Tis Hazari Court (hereafter referred to as the 'Ld. Trial Court/Ld. JMFC'), in case titled as; 'Shikha Singh v. Saurabh Singh, Ct. Case No. 138/2023', PS. Prashad Nagar, determining the CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 1 of 39 ABHISHEK GOYAL GOYAL 2025.10.04 16:37:11 +0530 application, filed on behalf of/by the appellant no. 1, in terms of the provisions of Section 23 of the DV Act . Pertinently, by virtue of the impugned order, the Ld. Trial Court, awarded interim maintenance to the tune of Rs. 20,000/- (Rupees Twenty Thousand only) per month in favour of respondent no. 2/for the minor son of appellant no. 1 and the respondent, however, declined to grant interim maintenance in favour of appellant no. 1 inter alia for the reason that appellant no. 1 was well educated and earning.

2. Succinctly, the facts leading to the filing of the instant appeals are that appellant no. 1 initiated a proceeding under DV Act, by filing a complaint/petition under Section 12 of DV Act before the Ld. Trial Court inter alia against the respondent and his other family members, i.e., Ms. Veena Kuradia (appellant's mother-in-law); Ms. Vandana Kuradia (appellant's sister-in-law); Ms. Anjali Tongaria

(appellant's sister-in-law); Mr. Yatinder Tongaria (appellants' brother-in-law); and Ms. Tara Ratawal (appellant's bua saas) (hereinafter all said relatives are collectively referred to as the 'respondent's relatives'). Marked, in her said complaint, the appellant inter alia asserted that the marriage between appellant no. 1 and respondent was solemnized on 15.02.2021, as per Hindu rites and ceremonies. As per appellant no. 1, her parents had spent heftily in the performance of said ceremonies, besides given costly gifts, articles, jewellery (gold and silver) and other expensive clothes to appellant no. 1 as well as respondent and respondent's relatives, way beyond their financial capacity. Markedly, in her complaint, appellant no. 1 avowed that prior to said marriage, bio-data/resume of respondent was shared with appellant no. 1's CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 2 of 39 ABHISHEK by ABHISHEK GOYAL GOYAL Date: 2025.10.04 16:37:37 +0530 family members, wherein respondent's annual package was specified as Rs. 23,00,000/- (Rupees Twenty Three Lakhs only), besides it was professed that the respondent was employed in a multi-national company, namely, British Tele Communication at Gurgaon. On the contrary, as per appellant no. 1, her parents were government employee, despite which, had spent generously on her marriage. In her complaint, the appellant further proclaimed that all the demands of the respondent and his family members were fulfilled by appellant no. 1's parents, despite which, the respondent and his family members started to persistently demand more money from appellant no. 1's parents and started subjecting appellant no. 1 to harassment, upon their failure to meet unjust demands of respondent and his family members.

2.1. Correspondingly, as per appellant no. 1, respondent's family members took all the gold-silver articles from appellant no. 1 on the pretext of their safe custody/safety, besides also insistently started subjecting appellant no. 1 to taunts/derogatory comments on her appearance, colour and complexion. As per appellant no. 1, she was also subjected to harassment in the hands of the respondent and his family members on the pretext of seeking/inquiring about her saving and source of income. In this regard, appellant no. 1 further asserted under her complaint that respondent's family members further repeatedly criticised and passed lewd/derogatory remarks against her/appellant no. 1 for bringing less dowry, threatening her that respondent would be married off elsewhere, in case such demands are not met. As per appellant no. 1 she was also forced by respondent and his family members to deliver her baby/child, CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 3 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:37:50 +0530 premature on 05.02.2022, despite threat to her well-being/health, on the pretext that the said date was declared as auspicious by their astrologer. The said complaint further chronicles that from the month of April 2022, appellant no. 1 was continuously asked by respondent and his family members to ask for a Fortuner car from her parents on the occasion of the birth of the said child, however, upon appellant no. 1's refusal to succumb to respondent and his family members' demand, she/appellant no. 1 was mercilessly beaten up by the respondent and his said relatives. Thereafter, as per appellant no. 1, she was persistently subjected to various incidents of physical and mental abuse in the hand of the respondent and his family members, besides left to a state of starvation.

2.2. Concomitantly, as per appellant no. 1, on 18.05.2022, respondent and his family members left her/appellant no. 1 in a gali/street, beneath her parental house, asking her to return to her matrimonial home only with dowry articles. It is further proclaimed by appellant no. 1 that despite repeated requests/entreaties from her parents, respondent and his family members refused to take appellant no. 1 back to her matrimonial home, leaving her to her own means, for sustenance of self and appellant no. 2. Under her complaint, appellant no. 1 further declared that being aggrieved with several acts of torture, atrocities, domestic violence, etc., she filed a written complaint, dated 13.12.2022, at PS. Kamla Market, however to no avail.

Correspondingly, under the aforementioned facts and circumstances, appellant no. 1/appellants, filed the instant complaint under Section 12 DV Act for seeking reliefs, inter alia envisaged under Sections 17, 18, 19, 20 and 22 of DV Act. Correspondingly, CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 4 of 39 ABHISHEK GOYAL GOYAL 2025.10.04 16:38:08 +0530 appellant no. 1 also moved an application under Section 23 of DV Act, seeking interim maintenance, along with her said complaint under Section 12 DV Act.

2.3. Notably, upon such complaint being filed, Ld. Trial Court vide order dated 20.01.2023, called for Domestic Incident Report (hereinafter referred to as 'DIR') to be filed through concerned protection officer. Subsequently, on receipt of DIR and upon appreciation of the facts and circumstances brought forth, notice was issued by the Ld. Trial Court inter alia to the respondent vide order dated 22.08.2023. Subsequently, appearance being entered on behalf of the respondent, the appellant and his family members, directions for filing of affidavit of income was made to the appellant and the respondent. Consequently, during the course of proceedings before Ld. Trial Court, appellant no. 1 and the respondent filed their respective affidavits of income, besides the respondent also filed his reply to the appellants' complaint and aforesaid application, denying the allegations levelled by appellant no. 1 as concocted and malicious. Markedly, upon completion of pleadings, arguments were addressed by/on behalf of the appellants and the respondent before the Ld. Trial Court on the appellants' application under Sec. 23 of DV Act. As aforementioned, upon conclusion of the said arguments, the Ld. Trial Court, vide impugned order/order dated 31.08.2023, disposed of appellants' said application, inter alia, under the following terms;

"...6. I have heard both the parties at considerable length and have perused the court record.

7. It cannot be denied that in a matrimonial dispute, the parties have a tendency to exaggerate the shortcomings of the opposite party in order to settle scores. Accordingly, at this stage, admitted income of CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 5 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:38:17 +0530 respondent no.1 is taken into account i.e. Rs. 1,36,341/- net income per month, out of which this court deems it fit to grant a maintenance of Rs. 20,000/- per month for the minor son of the petitioner to be paid by the respondent no. 1 which he is already paying as ad-interim maintenance. Maintenance

towards the petitioner is declined as she is well educated and is earning. Said maintenance shall be payable from the date of filing of the present petition till the disposal of the present case. The said amount is directed to be deposited in the bank account of the petitioner before 15th day of every month. Arrears of maintenance, as accrued, are directed to be cleared by respondent within 06 months of the present order.

8. Any default in payment of interim maintenance on a monthly basis shall be viewed strictly in terms of the judgment of Hon'ble High Court of Delhi in "Gaurav Sondhi Vs. Divya Sondhi", 120 DLT (2005) 426.

9. At this stage, this court would also like to state that anything received by the petitioner in any other proceedings of maintenance or proceedings of like nature or towards ad interim maintenance shall be adjusted in the amount awarded by this order.

10. Nothing stated herein shall tantamount to an expression of opinion on the final merits of the case.

11. With the above said observations, the present application U/s 23(2) of the DV Act is disposed of.

Copy of order be given dasti to both the parties ..."

(Emphasis supplied) 2.4. Noticeably, as per the respondent, in his reply filed before the Ld. Trial Court, the facts stated under appellants' said application are false and imaginary. In this regard, it was asserted by the respondent under his reply that not only did he/respondent never denied his obligation to maintain the appellants, rather, appellant no. 1 was never subjected to any harassment, demand for money/dowry and/or any sort of cruelty either in the hand of the respondent or any of his family members. On the contrary, as per the respondent, appellant no. 1 has opted to file the instant false and frivolous case against the respondent and his family CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 6 of 39 ABHISHEK by ABHISHEK GOYAL GOYAL Date: 2025.10.04 16:38:20 +0530 members, solely to harass them and merely for the reason that the respondent's family members and the respondent were living under same roof as the appellants, in appellant no. 1's matrimonial house. Concomitantly, it was proclaimed by the respondent that appellant no. 1, deliberately, willfully, intentionally and voluntarily withdrew from the custody of the respondent and started living with her parents, depriving him/the respondent from the companionship of even his newly born child. It is further asserted by the respondent that it was, in fact, appellant no. 1, who used to subject him/the respondent and his family members to harassment, ridicule and threat of false implication in legal proceedings, and has proceeded to file the instant complaint before the Ld. Trial Court on imaginary and make-belief facts. Correspondingly, as per the respondent, appellant no. 1 left/withdrew from the companionship of the respondent in a pre-planned manner and registered a false and fabricated complaint against him/the respondent and his family members, grossly maligning their reputation and standing in the

society.

3. Ld. Counsel for appellants submitted that impugned order was passed by the Ld. Trial Court, oblivious of correct facts and the circumstances of the present case as well as, unmindful of the settled law governing the field of grant of interim maintenance. Further, as per the Ld. Counsel, impugned order is arbitrary, illegal and perverse, having been passed by the Ld. Trial Court in a cursory manner, overlooking the material placed on record and without properly appreciating the facts and circumstances brought forth on record. Ld. Counsel further submitted that the impugned order suffers from manifest error of CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 7 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:38:42 +0530 law, which is apparent on face of record, which has resulted in severe miscarriage of justice, hence, is unstainable and liable to be set aside. It was further asserted that the impugned order is patently based on extraneous consideration and as such, is totally premised on concocted stories set up by the respondent, without demonstrating any proof thereof. In this regard, Ld. Counsel outrightly contended that the Ld. Trial Court erred in reaching the conclusion that appellant No.1 was well educated and earning, thereby, declining grant of maintenance in her favour. In this regard, Ld. Counsel for the appellants strenuously contended that neither was there any submission on the part of the respondent that appellant no. 1 was working at the relevant point in time, nor was there any admission from appellant no. 1's end before the Ld. Trial Court regarding her being employed. Ergo, under such circumstances, Ld. Counsel asserted that the Ld. Trial Court committed manifest error in denying interim maintenance to appellant no. 1 by wrongly assuming that she was working and earning at the relevant point in time, bereft of any material forthcoming on record in this regard. As per the Ld. Counsel, the Ld. Trial Court did not apply its mind to the facts, pleading of the case and even on the dictates/judgements relied upon by appellant no. 1, while denying her claim of maintenance. 3.1. Ld. Counsel for appellants further vehemently asserted that the Ld. Trial Court did not consider the reply filed by the respondent to appellant no. 1's complaint under Section 12 DV Act in its correct perspective and wrongly reached a conclusion of appellant no. 1 being employed at the relevant point in time. In this regard, Ld. Counsel strenuously argued that it was respondent's own case that appellant no. 1 was working CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 8 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:38:47 +0530 prior to her wedding, however, asserting that she/appellant no. 1 left her said employment of her own will and accord. However, it was submitted that despite such assertion by the respondent, as per the Ld. Counsel, the Ld. Trial Court erred in reaching a conclusion of appellant no. 1 being employed even at the time of passing of the impugned order. In this regard, Ld. Counsel for appellant no. 1 further vehemently argued that appellant No.1 left her job, while she was living in her matrimonial home, which fact was within respondent's knowledge and his family members, as well as never denied by the respondent even in his

pleading till date. However, as per the Ld. Counsel, the Ld. Trial Court, quite surprisingly did not even consider the pleadings/facts of the case, properly and passed the impugned order in a casual manner, unmindful of law and submissions made by appellant No.1. Even otherwise, as per the Ld. Counsel, the Ld. Trial Court failed to appreciate that the superior courts have persistently asserted that 'capacity to earn' and 'inability to earn and maintain' are different situations, necessitating proper appreciation while determining an application for maintenance/interim maintenance. 3.2. Ld. Counsel for appellants further submitted that the Ld. Trial Court failed to appreciate that appellant no. 2 is a child of around two years of age, unable to fend for himself, without his mother. Ergo, it was submitted by the Ld. Counsel that appellant no. 1 has to be present with appellant no. 2 at all point in time to make good of minor child's need and under such circumstances, appellant no. 1's going to job is improbable.

Further, as per the Ld. Counsel, the Ld. Trial Court failed to consider that even respondent's sister is employed, therefore, the question of respondent being solely responsible for the take CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 9 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:38:51 +0530 care/look after of his parents is incomprehensible. Correspondingly, it was argued that the Ld. Trial Court did not consider the respondent's account statement, wherein, several entries show transfer of significant amount/funds in the account of his sisters. Further, it was submitted that the Ld. Trial Court did not take into consideration/account, the actual income of the respondent, which is shown in the statement of account enclosed by him with his affidavit of income and assets. Ld. Counsel further vehemently argued that the Ld. Trial Court did not appreciate the age of appellant no. 2, who is unable to live without the aid/care of appellant no. 1 and the fact that appellant no. 1's father are not capable of taking care of the needs of the minor child/appellant no. 2. Ergo, it was reiterated by the Ld. Counsel that the Ld. Trial Court passed the impugned order, unmindful of the correct facts of the case as well as settled law, deserving the same to be outrightly set aside. Accordingly, Ld. Counsel for the appellants entreated that the instant appeal may be allowed and the impugned order, in so far as it rejects appellant no. 1's claim for interim maintenance be set aside. In support of the said contentions, reliance was placed upon the decisions in; *Rajnesh v. Neha*, (2021) 2 SCC 324; *Shailja v. Khobbanna*, (2018) 12 SCC 199; *Sunita Kachwaha v. Anil Kachwaha*, (2014) 16 SCC 715; and *Sanjay Damodar Kale v. Kalyani Sanjay Kale*, 2020 SCC Online Bom 694.

4. Per contra, Ld. Counsel for respondent submitted that impugned order suffers with no illegality and/or impropriety, being passed by the Ld. Trial Court taking care of all the settled judicial precedents as well as being wary of the facts and circumstances brought forth. As per the Ld. Counsel, there is CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 10 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:38:55 +0530 nothing under the impugned order on the basis of which, it can be said that the same was passed by the Ld. Trial Court against the settled precedents and provisions of Law. It was further submitted that the impugned order is lucidly as well as well- reasoned, passed by the Ld. Trial Court, after well and due appreciation of the material/evidence/pleading/contentions placed on record, as such it does not require any modification/re- evaluation by this Court. In this regard, Ld. Counsel for the respondent further asserted that during the course of proceedings before the Ld. Trial Court, the respondent duly asserted that appellant no. 1 is well to do as a sum/amount of around Rs. 25,00,000/- (Rupees Twenty Five Lakhs only) are lying in appellant no. 1's, six Bank accounts, which he deliberately concealed in her income and expenditure affidavit. Correspondingly, as per the Ld. Counsel, appellant no. 1 has also concealed the details of her stocks, jewellery articles, FDRs/fixed deposits, etc., solely to mislead the Ld. Trial Court to submit to her unjust demands. Even otherwise, it was asserted by the Ld. Counsel that even appellant no. 1's assertion/allegations of cruelty, etc., are grossly misconceived, rather, it was appellant no. 1, who is guilty of committing domestic violence against the respondent, leading to respondent being compelled to file a petition for divorce. In this regard, Ld. Counsel strenuously contended that appellant no. 1 is trying to take advantages of her own wrong, disentitling her to claim any relief/indulgence from this Court.

4.1. Ld. Counsel for the respondent further submitted that though the respondent truthfully disclosed all his sources of income and assets in his affidavit, filed before the Ld. Trial CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 11 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:39:00 +0530 Court. On the contrary, appellant no. 1, deliberately, intentionally and with ulterior motives of hiding her financial status, filed a false income and expenditure affidavit, thereby showing herself to be a destitute lady despite being a highly qualified/educated (MBA), well capable of earning, despite having enormous amount of Rs. Rs. 25,00,000/- (Rupees Twenty Five Lakhs only) lying in her six Bank accounts. Ld. Counsel further reiterated that not only did appellant no. 1 did not disclose her complete and correct income/sources of income, rather, also deliberately inflated her expenditure with a sole intention to burden the respondent with expenses/financial liability. Ld. Counsel further submitted that the finding of the Ld. Trial Court under the impugned order that appellant no. 1 is, "well educated and is earning" does not indicate that the Ld. Trial Court, while passing the impugned order was not mindful about the status of appellant no. 1. As per the Ld. Counsel, the significance in the said words/finding lies in the fact that as per the Ld. Trial Court, in view of the education, age, and earning capacity of appellant no.

1, correctly, saw no reasonable ground to grant her maintenance. Ergo, considering that appellant no. 1 was never constrained to leave her job, the words, 'is earning' under the impugned order could be read as 'was earning', as per the circumstances appearing in the present matter. Correspondingly, as per the Ld. Counsel, the assertion of appellant no. 1 that since she is engaged in taking care of

their minor child/appellant no. 2, she is unable to earn, is grossly false, baseless and without any substance. In this regard, Ld. Counsel firmly asserted that being engaged with a child does not de-merit, employment. Even otherwise, as per the Ld. Counsel, appellant no. 1 is being helped by her parents CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 12 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:39:03 +0530 and other family members, demonstrating the falsity in her assertion that she is unable to work.

4.2. Ld. Counsel for the respondent further submitted that the Ld. Trial Court granted a sufficiently reasonable amount of Rs. 20,000/- (Rupees Twenty Thousand only) per month for appellant no. 2, which is more than sufficient for a child of such an age and no fault can be found in the same. In this regard, Ld. Counsel reiterated that the conclusions arrived at by the Ld. Trial Court under the impugned order are a result of a reasonable appreciation of the circumstances as available before it, and no irregularity/impropriety can be attributed to the impugned order on any count. On the other hand, as per the Ld. Counsel, appellant no. 1, in order to get the respondent punished monetarily, in unnecessarily insisting that because of the child, she is unable to earn, which plea is prima facie devoid of merits and have no application in the present case. In this regard, Ld. Counsel further submitted that the respondent's sole source of income is his job and he is liable to maintain his dependent parents, besides, he is devoid of any ancestral property, stays in a flat in Delhi, incurring substantial loan of Rs. 45,000/- (Rupees Forty Five Thousand only) per month towards home loan; Rs.

31,000/- (Rupees Thirty One Thousand only) per month towards car lease; Rs. 20,000/- (Rupees Twenty Thousand only) per month towards maintenance of appellant no. 2; Rs. 30,000/- (Rupees Thirty Thousand only) per month (approx.) towards legal expenses and other expenses, as specified under his affidavit of income and expenses, disentitling appellant no. 1 to seek further monetary claims from the respondent. Further, as per the Ld. Counsel for the respondent, the allegation of appellant no.

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1, regarding the funds being allegedly transferred by the respondent into the bank account of his sister has no relevance to the present case, besides the truthfulness of such allegation can only be determined during the course of trial. Ergo, Ld. Counsel for the respondent asserted/entreated that the instant appeal is grossly misconceived and devoid of merits, deserving its outright dismissal.

5. The arguments of Ld. Counsel for the appellants and that of Ld. Counsel for the respondent have been heard and the record(s), including the Trial Court Record(s)/TCR and written submissions/written arguments, filed on behalf of the parties, thoroughly perused.

6. Before proceeding with the determination of the merits of the present case, this Court deems it apposite to deal with the application/prayer for condonation of delay in filing the present appeal. In this regard, it is outrightly noted that against the impugned order dated 31.08.2024, the present appeal was preferred only on 15.10.2024, instead of 30.09.2024, beyond the statutory provided period of 30 (thirty) days as per the provisions under Section 29 of DV Act. Notably, in this regard, Ld. Counsel for the appellants asserted that the reason for delay, if any, was occasioned for the fact that certified copy of the impugned order was applied by/on behalf of appellant no. 1 on 20.09.2024 and the same was obtained on 05.10.2024, entitling the appellant to the exclusion of said period while computing the period of said 30 (thirty) days in filing the appeal. Ergo, as per the Ld. Counsel, when the said period of obtaining certified copy of the impugned order is excluded from the statutory prescribed period of limitation, the instant appeal is well within time. Needless to CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 14 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:39:17 +0530 mention, Ld. Counsel for respondent asserted that appellant no. 1 be put to strict proof regarding the foregoing assertion.

7. Markedly, in respect of the aforesaid, this Court outrightly makes a reference to Section 29 of DV Act, which provides, "...there shall lie an appeal to the Court of Session within thirty days from the date on which the order made by the Magistrate is served on the aggrieved person or the respondent, as the case may be, whichever is later". Clearly, from the said provision, it is noted that the limitation period of preferring an appeal against the order of magistrate is a period of thirty days from the date on which such an order is served on the aggrieved person or the respondent, as the case may be, whichever is later.

However, it is further incumbent to refer to the provisions under Section 29(2) of the Limitation Act, 1963 (hereinafter referred to as the 'Limitation Act'), which provides as under;

"29. Savings-(1) Nothing in this Act shall affect section 25 of the Indian Contract Act, 1872 (9 of 1872).*** ***(2) Where any special or local law prescribes for any suit, appeal or application a period of limitation different from the period prescribed by the Schedule, the provisions of section 3 shall apply as if such period were the period prescribed by the Schedule and for the purpose of determining any period of limitation prescribed for any suit, appeal or application by any special or local law, the provisions contained in sections 4 to 24 (inclusive) shall apply only in so far as, and to the extent to which, they are not expressly excluded by such special or local law..."

(Emphasis supplied)

8. Strikingly, from a conscientious perusal of the aforesaid provision demonstrates that though, DV Act provides for no specific provisions for condonation of delay in preferring an appeal against the order of a magistrate, however, by virtue of CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 15 of 39 ABHISHEK by ABHISHEK GOYAL GOYAL Date: 2025.10.04 16:39:21 +0530 the provisions under Section 29(2) of the Limitation Act, provisions under the said enactment/Limitation Act, in particular, provisions under Section 4 to 24 of the said enactment shall continue to apply only in so far as and to the extent to which, they are not excluded by DV Act/such special or local law. Ergo, in light of the foregoing, here it would be apposite to make a reference to the provisions under Section 12(2) of the Limitation Act, which inter alia provides that in computing the period of limitation inter alia for an appeal, "the day on which the judgment complained of was pronounced and the time requisite for obtaining a copy of the decree, sentence or order appealed from or sought to be revised or reviewed shall be excluded". Correspondingly, Section 5 of the Limitation Act envisages, condonation of delay/extension of prescribed period in certain cases on demonstration of 'sufficient cause', which term(s)/words have been repeatedly asserted by superior courts to be elastic and liberally construed, in the interest of justice. In this regard, reference is further made to the decision of the Hon'ble Supreme Court in Esha Bhattacharjee v. Raghunathpur Nafar Academy, (2013) 12 SCC 649, wherein the Hon'ble Court, while painstakingly collating the guiding principles governing the exercise of court's power to condone delay as well as the meaning of the words, 'sufficient cause', enunciated as under;

"21. From the aforesaid authorities the principles that can broadly be culled out are:

21.1. (i) There should be a liberal, pragmatic, justice-oriented, non-pedantic approach while dealing with an application for condonation of delay, for the courts are not supposed to legalise injustice but are obliged to remove injustice.

Esha Bhattacharjee v. Raghunathpur Nafar Academy, (2013) 12 SCC 649.

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21.2. (ii) The terms "sufficient cause" should be understood in their proper spirit, philosophy and purpose regard being had to the fact that these terms are basically elastic and are to be applied in proper perspective to the obtaining fact-situation. 21.3. (iii) Substantial justice being paramount and pivotal the technical considerations should not be given undue and uncalled for emphasis.

21.4. (iv) No presumption can be attached to deliberate causation of delay but, gross negligence on the part of the counsel or litigant is to be taken note of.

21.5. (v) Lack of bona fides imputable to a party seeking condonation of delay is a significant and

relevant fact.

21.6. (vi) It is to be kept in mind that adherence to strict proof should not affect public justice and cause public mischief because the courts are required to be vigilant so that in the ultimate eventuate there is no real failure of justice.

21.7. (vii) The concept of liberal approach has to encapsulate the conception of reasonableness and it cannot be allowed a totally unfettered free play. 21.8. (viii) There is a distinction between inordinate delay and a delay of short duration or few days, for to the former doctrine of prejudice is attracted whereas to the latter it may not be attracted. That apart, the first one warrants strict approach whereas the second calls for a liberal delineation. 21.9. (ix) The conduct, behaviour and attitude of a party relating to its inaction or negligence are relevant factors to be taken into consideration. It is so as the fundamental principle is that the courts are required to weigh the scale of balance of justice in respect of both parties and the said principle cannot be given a total go by in the name of liberal approach.

21.10. (x) If the explanation offered is concocted or the grounds urged in the application are fanciful, the courts should be vigilant not to expose the other side unnecessarily to face such a litigation.

21.11. (xi) It is to be borne in mind that no one gets away with fraud, misrepresentation or interpolation by taking recourse to the technicalities of law of limitation.

21.12. (xii) The entire gamut of facts are to be carefully scrutinised and the approach should be CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 17 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:39:29 +0530 based on the paradigm of judicial discretion which is founded on objective reasoning and not on individual perception.

21.13. (xiii) The State or a public body or an entity representing a collective cause should be given some acceptable latitude.

22. To the aforesaid principles we may add some more guidelines taking note of the present day scenario. They are:

22.1. (a) An application for condonation of delay should be drafted with careful concern and not in a haphazard manner harbouring the notion that the courts are required to condone delay on the bedrock of the principle that adjudication of a lis on merits is seminal to justice dispensation system.

22.2. (b) An application for condonation of delay should not be dealt with in a routine manner on the base of individual philosophy which is basically subjective.

22.3. (c) Though no precise formula can be laid down regard being had to the concept of judicial discretion, yet a conscious effort for achieving consistency and collegiality of the adjudicatory system should be made as that is the ultimate institutional motto.

22.4. (d) The increasing tendency to perceive delay as a non-serious matter and, hence, lackadaisical propensity can be exhibited in a nonchalant manner requires to be curbed, of course, within legal parameters."

(Emphasis supplied)

9. Unmistakably, it is deduced from above that the rules of limitation, which are premised on the principles enshrined in a Latin maxim, 'interest reipublicae ut sit finis litium²', are designed not to destroy the legal rights of parties, rather, to ensure that the parties do not resort to dilatory tactics. Ergo, considering the objective of the law and further being wary of the fact that there is no presumption under law that the delay in approaching courts was deliberate, courts³ have repetitively It is for the general welfare that a period be put to litigation.

J.M. Ramachandra & Sons v. Customs Excise & Gold (Control) Appellate Tribunal, 2001 SCC OnLine Del 1082.

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professed for adoption of a pragmatic, justice-oriented approach, in variance to, technical interpretation, while determining 'sufficient cause' in a case. Needless to mention that it is equally a settled law⁴, "decisive factor for condonation of delay is not length of delay but sufficiency and satisfactory explanation." Apposite in respect of the foregoing to make a reference to the decision of the Hon'ble Supreme Court in State of U.P. v. Satish Chand Shivhare & Brothers, 2022 SCC OnLine SC 2151, wherein the Hon'ble Court, while professing for the adoption of a balanced as well as liberal approach in the determination of a prayer for limitation/condonation of delay, asserted as under;

"22. When consideration of an appeal on merits is pitted against the rejection of a meritorious claim on the technical ground of the bar of limitation, the Courts lean towards consideration on merits by adopting a liberal approach towards 'sufficient cause' to condone the delay. The Court considering an application under Section 5 of the Limitation Act may also look into the prima facie merits of an appeal. However, in this case, the Petitioners failed to make out a strong prima facie case for appeal. Furthermore, a liberal approach, may adopted when some plausible cause for delay is shown. Liberal approach does not mean that an appeal should be allowed even if the cause for delay shown is glimsy. The Court should not waive limitation for all practical purposes by condoning inordinate delay caused by a tardy lackadaisical negligent manner of functioning."

(Emphasis supplied)

10. Consequently, in light of the aforementioned judicial dictates/principles governing limitation; arguments addressed by the Ld. Counsel for the parties; appreciating the facts and circumstances and brought forth to the notice of this Court; and further being mindful of the provisions under Section 12 of the Limitation Act, this Court is of the considered opinion that the Dineshbhai Rameshbhai Minama v. State of Gujarat, 2018 SCC OnLine Guj 2610.

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period in obtaining certified copy of the impugned order by the appellant, i.e., period from 20.09.2024 till 05.10.2024, deserves to be excluded while computing the period of limitation in preferring the present appeal. Consequently, when the said period from 20.09.2024 till 05.10.2024 is excluded from the period the total period/time taken in filing the present appeal against the impugned order, this Court unswervingly reaches a conclusion that the present appeal was preferred by/on behalf of the appellants within the statutory prescribed period of limitation. Even otherwise, delay, if any, in preferring the present appeal deserves to be condoned in light of the facts and circumstances brought forth, aforementioned judicial precedents and provisions of law/Sections 5/12 of the Limitation Act.

11. Noticeably, proceeding further with the determination of the rival contentions of the parties, this Court deems it pertinent to reproduce the relevant provisions under law/DV Act, as under;

"2. Definitions-In this Act, unless the context otherwise requires,-(a) "aggrieved person" means any woman who is, or has been, in a domestic relationship with the respondent and who alleges to have been subjected to any act of domestic violence by the respondent;...

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(f) "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage or through a relationship in the nature of marriage, adoption or are family members living together as a joint family;

*** **

20. Monetary reliefs-(1) While disposing of an application under sub-section (1) of Section 12, the Magistrate may direct the respondent to pay monetary relief to meet the expenses incurred and losses suffered by the aggrieved person and any child of the aggrieved person as a result of the domestic CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 20 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:39:40 +0530 violence and such relief may include, but is not limited to,

(a) the loss of earnings;

(b) the medical expenses;

(c) the loss caused due to the destruction, damage or removal of any property from the control of the aggrieved person; and

(d) the maintenance for the aggrieved person as well as her children, if any, including an order under or in addition to an order of maintenance under Section 125 of the Code of Criminal Procedure, 1973 (2 of 1974) or any other law for the time being in force.

(2) The monetary relief granted under this section shall be adequate, fair and reasonable and consistent with the standard of living to which the aggrieved person is accustomed.

(3) The Magistrate shall have the power to order an appropriate lump sum payment or monthly payments of maintenance, as the nature and circumstances of the case may require...

*** **

23. Power to grant interim and ex parte orders-(1) In any proceeding before him under this Act, the Magistrate may pass such interim order as he deems just and proper.

(2) If the Magistrate is satisfied that an application prima facie discloses that the respondent is committing, or has committed an act of domestic violence or that there is a likelihood that the respondent may commit an act of domestic violence, he may grant an ex parte order on the basis of the affidavit in such form, as may be prescribed, of the aggrieved person under Section 18, Section 19, Section 20, Section 21 or, as the case may be, Section 22 against the respondent..."

(Emphasis supplied)

12. At the outset, it is observed that the objective 5 behind the enactment of DV Act is to accord statutory protection to victims of violence in domestic sector, who had no proprietary rights. The said enactment provides for security and an armour to a 'victim', inter alia by permitting issuance of protection orders that can prohibit the abuser from contacting or approaching the Ishpal Singh Kahai v. Ramanjeet Kahai, 2011 SCC OnLine Bom 412.

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victim, as well as guarantees, endowment of financial support and victim's access to shared property. In fact, the superior courts have persistently avowed⁶ that the inherent aspiration for bringing forth the said enactment is to secure various rights to a woman living in matrimony or in a relationship akin to matrimony, or any domestic relationship, "to move to Court for any of the reliefs outlined in Section 12 through either a comprehensive proceeding, claiming maintenance, right to residence, compensation etc. or even move to Court seized of any other pending proceeding, such as divorce and maintenance etc." Reference in this regard is further made to the decision of the Hon'ble Supreme Court in Indra Sarma v. V.K.V. Sarma, (2013) 15 SCC 755, wherein the Hon'ble Court, noted the objective behind the enactment of DV Act in the following terms;

"15. The DV Act has been enacted to provide a remedy in civil law for protection of women from being victims of domestic violence and to prevent occurrence of domestic violence in the society . The DV Act has been enacted also to provide an effective protection of the rights of women guaranteed under the Constitution, who are victims of violence of any kind occurring within the family.

16. "Domestic violence" is undoubtedly a human rights issue, which was not properly taken care of in this country even though the Vienna Accord, 1994 and the Beijing Declaration and Platform for Action (1995) had acknowledged that domestic violence was undoubtedly a human rights issue. The UN Committee on Convention on Elimination of All Forms of Discrimination Against Women in its general recommendations had also exhorted the member countries to take steps to protect women against violence of any kind, especially that occurring within the family, a phenomenon widely prevalent in India. Presently, when a woman is subjected to cruelty by husband or his relatives, it is an offence punishable under Section 498-A IPC. The civil law, it was noticed, did not address this Shambhu Prasad Singh v. Manjari, 2012 SCC OnLine Del 2895.

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2025.10.04 16:39:48 +0530 phenomenon in its entirety. Consequently, Parliament, to provide more effective protection of rights of women guaranteed under the Constitution under Articles 14, 15 and 21, who are victims of violence of any kind occurring in the family, enacted the DV Act."

(Emphasis supplied)

13. Strikingly, one of the remarkable features of the DV Act/provisions under DV Act is incorporated under Section 23 thereof, envisioning interim relief(s), inter alia, in the form of interim maintenance to be paid by the 'respondent' in favour of an 'aggrieved person', till the final adjudication on relief(s) sought for, which in the opinion of the magistrate is deemed as 'just and proper'. Quite evidently, the reasoning behind such an interim grant/order is, "not to punish a person for his past neglect, but to prevent vagrancy by compelling those who can provide support to those who are unable to support themselves and who have a moral claim to support." Reference, in this regard is further made to the decision in X v. Y, 2023 SCC Online Del 7925, wherein the Hon'ble High Court of Delhi, while enunciating the rationale behind the incorporation of the provisions under Section 23 DV Act, remarked as under;

"28. *** (iii) ...Under the DV Act, 2005, the provision for interim monetary relief was incorporated to provide the wife with immediate succour. The monetary relief as provided under Section 20 of the DV Act, 2005 is far more expansive than the right of interim maintenance recognized under Section 125 of Cr. P.C., 1973. The relief is not limited to maintenance but also included expenses incurred and losses suffered by the aggrieved person and any child of the aggrieved person as a result of domestic violence inter alia loss of earnings, medical expenses, the loss caused due to the destruction, damage or removal of any property from the control of the aggrieved person, in addition to the maintenance for the aggrieved person as well Chaturbhuj v. Sita Bai, (2008) 2 SCC 316.

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as her children, if any, including an Order under or in addition to an order of maintenance under Section 125 of Cr. P.C., 1973 or any other law for the time being in force..."

(Emphasis supplied)

14. Markedly, it is seen from above that the provisions under Section 23 of the DV Act are beneficial/propitious in nature, guaranteeing that a dependent spouse is not reduced to a state of deprivation or impoverishment on account of the failure of the marriage. Nonetheless, the faculty envisioned under Section 23 DV Act, demand a cautionary exercise, ensuring establishment of an equipoise between the conflicting interests of the spouses. In fact, it is settled law⁸ that the grant of maintenance must ensure that the amount so awarded to a spouse is not so excessive, so that it becomes punitive and oppressive for the respondent, nor should such an amount be so paltry, so as to push a spouse to a state of penury. Here, it is further apposite to note that the determination of the quantum of interim maintenance, pending final adjudication of the conflicting interests, entails formation of only a prima facie view of the matter, and serious disputed questions of facts, demanding proof by adducing evidence, cannot be considered at such a stage. Reference in this regard, is made to the decision of the Hon'ble High Court in *Kanupriya Sharma v. State*, 2019 SCC Online Del 8816, wherein the Hon'ble Court in this regard unambiguously observed as under;

"21. An application under Section 23(1) of the D.V. Act is an application for fixing interim maintenance. Interim maintenance is fixed on taking a prima facie view of the matter. Serious disputed questions of facts raised at that stage, requiring evidence cannot be gone into. Unless undisputed *Zahir Abdullah v. Omar Abdullah*, 2023 SCC OnLine Del 5341.

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evidence is produced by the husband clearly establishing that the wife is gainfully employed, relief of interim maintenance cannot be declined."

(Emphasis supplied)

15. Here, it is further apposite to note that the grant of interim maintenance depends on multitudinous factors, such as; status of the parties, reasonable wants of the claimant, independent income and property of the claimant, etc. In this regard, reference is made to the decision in *Bharat Hegde v. Saroj Hegde*, 2007 SCC Online Del 622, wherein the Hon'ble High Court of Delhi, noted the following considerations, whilst determining a claim for interim maintenance;

"8. Unfortunately, in India, parties do not truthfully reveal their income. For self-employed persons or persons employed in the unorganized sector, truthful income never surfaces. Tax avoidance is the norm. Tax compliance is the exception in this country. Therefore, in determining interim maintenance, there cannot be mathematical exactitude. The court has to take a general view. From the various

judicial precedents, the under noted 11 factors can be culled out, which are to be taken into consideration while deciding an application under Section 24 of the Hindu Marriage Act. The same are:

1. Status of the parties.
2. Reasonable wants of the claimant.
3. The independent income and property of the claimant.
4. The number of persons, the non-applicant has to maintain.
5. The amount should aid the applicant to live in a similar lifestyle as he/she enjoyed in the matrimonial home.
6. Non-applicant's liabilities, if any.
7. Provisions for food, clothing, shelter, education, medical attendance and treatment etc. of the applicant.
8. Payment capacity of the non-applicant.
9. Some guess work is not ruled out while estimating the income of the non-applicant when all the sources or correct sources are not disclosed.

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10. The non-applicant to defray the cost of litigation.
11. The amount awarded u/s. 125 Cr. P.C. is adjustable against the amount awarded u/s. 24 of the Act."

(emphasis supplied)

16. Remarkably, though, the aforesaid findings were tendered by the Hon'ble Court in the context of the provisions under Section 24 of the Hindu Marriage Act 1955, however, were reiterated with approval in the subsequent decision of the Hon'ble Supreme Court in *Rajnesh v. Neha*, (Supra.). In fact, in the said dictate, the Hon'ble Court enunciated additional factors such as; '(a) age and employment of parties; (b) right of residence; (c) earning of wife; (d) maintenance of minor child; and (e) serious disability or ill health', which, as per the Hon'ble Court, are required to be considered at the stage of such determination. Here, this Court deems it apposite to reproduce the relevant extracts from the dictate of the Hon'ble Supreme Court in *Rajnesh v. Neha*, (Supra.), wherein the Hon'ble Court noted in the context of foregoing, as under;

"78. The factors which would weigh with the court inter alia are the status of the parties; reasonable needs of the wife and dependent children; whether the applicant is educated and professionally qualified; whether the applicant has any independent source of income; whether the income is sufficient to enable her to maintain the same standard of living as she was accustomed to in her matrimonial home; whether the applicant was employed prior to her marriage; whether she was working during the subsistence of the marriage; whether the wife was required to sacrifice her employment opportunities for nurturing the family, child rearing, and looking after adult members of the family; reasonable costs of litigation for a non-working wife. [Refer to Jasbir Kaur Sehgal v. District Judge, Dehradun, (1997) 7 SCC 7; Refer to Vinny Parmvir Parmar v. Parmvir Parmar, (2011) 13 SCC 112: (2012) 3 SCC (Civ) 290] CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 26 of 39 ABHISHEK GOYAL GOYAL Date:

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80. On the other hand, the financial capacity of the husband, his actual income, reasonable expenses for his own maintenance, and dependent family members whom he is obliged to maintain under the law, liabilities if any, would be required to be taken into consideration, to arrive at the appropriate quantum of maintenance to be paid. The court must have due regard to the standard of living of the husband, as well as the spiralling inflation rates and high costs of living. The plea of the husband that he does not possess any source of income ipso facto does not absolve him of his moral duty to maintain his wife if he is able-bodied and has educational qualifications. [Reema Salkan v. Sumer Singh Salkan, (2019) 12 SCC 303: (2018) 5 SCC (Civ) 596: (2019) 4 SCC (Cri) 339]"

(Emphasis supplied)

17. Notably, the core and crux of the repeated avowals of the superior courts is that discernment of quantum of maintenance primary warrants fortification⁹ that the standard of living as enjoyed by the wife during the marriage, is maintained by the husband even after the marriage ceases to exist. Quite comprehensibly, it is for this reason that the Hon'ble High Court of Delhi in Rishi Kumar v. Suman, 2008 SCC Online Del 38 , while confronted with an issue of an akin kind, remarked as under;

"9. Suffice would it be to state that in matrimonial disputes the income of every husband disappears even when in employment. It is noted that husband's resort to excessive deductions from their salaries. All kinds of loans are taken and monthly deductions are effected from their salaries.

10. In my opinion, the socio-economic background of the parties is a relevant consideration while determining the income of a respective spouse.

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13. At the time when he got married, obviously, petitioner had a good income for the reason if he was earning a meagre sum of Rs. 6,000/- to Rs. 7,000/- per month, the girl's family would not have married their daughter to him.

Arvind Kishore v. Neha Mathur, 2022 SCC OnLine Raj 1510 CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 27 of 39 ABHISHEK GOYAL GOYAL 2025.10.04 16:40:08 +0530

14. The family of the bride and the groom come from a well-off strata of the society.

15. The wife would be entitled to the same standard of living to which she was used to when living with her husband. She would be entitled to use the same kind of electrical and electronic gadgets. Why should she be denied the use of a car?"

(Emphasis supplied)

18. Ergo, being cognizant of the principles hereinunder enunciated, this Court would now proceed with the determination of the rival contentions of the parties in the instant case. As aforementioned, Ld. Counsel for the appellants vehemently argued before this Court that the Ld. Trial Court erred in denying appellant no. 1's claim of maintenance on an erroneous finding that she/appellant no. 1 was well qualified and working at the relevant point in time. In contrast, Ld. Counsel for the respondent asserted that the finding of the Ld. Trial Court under the impugned order that appellant no. 1 is, "well educated and is earning" does not indicate that the Ld. Trial Court, while passing the impugned order was not mindful about the status of appellant no. 1. Correspondingly, Ld. Counsel for the respondent asserted that the words, 'is earning' under the impugned order could be read as 'was earning', as per the circumstances appearing in the present matter. However, in order to determine the said issue, it is pertinent to reproduce the relevant extracts of appellant no. 1's application under Section 23 of DV Act, as under;

"3. That aggrieved person No. 1 is a graduate lady and she has experience of earning for the last seven years as she was working in Bank, before marriage and even after marriage she was working there also because work was going on from work from home basis. However, after the birth of child (aggrieved person no. 2, she was very much busy in upbringing of her child) then, she has left her job and now she is not working anywhere or she doesn't have any source of income at present. The video of CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 28 of 39 ABHISHEK GOYAL GOYAL 2025.10.04 16:40:11 +0530 aggrieved person no. 1 and aggrieved person no. 2, wherein she is taking care of him is on record.

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7. That the aggrieved persons are at the stage of starvation and aggrieved person no. 1 has no source of income at present and that is why, she is totally dependent upon the mercy of her old age parents. She is not working anywhere and is busy in bringing up her child, i.e., aggrieved person no. 2. Videography of taking care and up bringing is also on record for king perusal of this Court.

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10. That the aggrieved persons are at the stage of starvation and complainant no. 1 has no source of income at present and that is why, she is totally dependent upon the mercy of her old age parents. She is not working anywhere and is busy in bringing up her child, i.e., aggrieved person no. 2..."

(Emphasis supplied)

19. Pertinently, nowhere under his reply(ies) to the instant application as well as to appellant no. 1's complaint, respondent denied the factum of appellant no. 1 not being employed at the time of moving such application/complaint, rather, the respondent merely asserted that appellant no. 1 was working prior and subsequent to her marriage. Correspondingly, the respondent inter alia proclaimed under his Affidavit of Income and Expenses, as under;

"***J. Information provided by the Deponent with respect to the income assets and liabilities of the other spouse.

S. No.	Description	Particulars
1.	Education and professional qualification of the other spouse	MBA Finance
2.	Whether spouse is earning? Is so, give particulars of the occupation and income of the spouse.	Job in Ujjivan Small Finance Bank, Sec.-3, Noida as Credit Officer, at the time of marriage her salary was Rs. 23,000/- and at the
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		time of separation her salary was Rs. 24,000/-, now not known.
3.	If not, whether he/she is	Shika is presently

staying in his/her own accommodation or in accommodation provided by employer/ business/ partnership?

staying at her parents' home which is one of the 9-10 properties that they own. Both her father & mother are retired from SBI Bank & getting monthly pension. Her parents may be requested to produce income/asset information as required. Her father is having stocks worth Rs. 1 Crore+. Both her parents hold multiple accounts in different banks with number of FDs against their names. Shikha's brother is working in SBI bank in Moradabad & her sister-in-law is also working.

4. Particulars of assets and liabilities of spouse as known to the deponent along with supporting documents.

Shikha holds 3 bank accounts in Ujjivan Bank, Axis Bank & SBI. Out of which she has provided information only about Ujjivan Bank & that too for 15 months only. Not only this she had also hidden a lot of information related to FDs, stocks & her income & expenditure. An application u/S. 340 Cr.P.C. has already been filed on

affidavit on 13th Dec. 2023, on which the decision is pending from this Hon'ble Court.

The statement that she has provided so far contains the details of FDs & stocks that she hold. She may be directed to produce her bank statement & income & expenditure details from last 3 years of filing the case as more information will surface upon production of those documents. ***"

(Emphasis supplied)

20. Quite evidently, it is seen from a conjoint reading of the above that appellant no. 1 asserted that she was not employed at the relevant point in time owing to the factum of minority of her child. However, despite such assertion by appellant no. 1, respondent merely asserted before the Ld. Trial Court that at the time of their separation, appellant no. 1 was earning an amount/salary to a tune of Rs. 24,000/- (Rupees Twenty-Four Thousand only) per month, though, he was unaware, whether or not she/appellant no. 1 was working at that point in time. Relevantly, even in his reply to the present appeal, respondent nowhere denied the assertion of appellant no. 1 pertaining to her not working/being unemployed, rather, merely asserted as under;

"...8. That the grounds as chosen by the Appellants to assail the order dated 31.08.2024 are not available to them in any manner of whatsoever nature even a cursory look on the same would make it abundantly clear that the Ld. Trial Court has not failed in appreciating the unambiguous, plain and CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 31 of 39 ABHISHEK by ABHISHEK GOYAL GOYAL Date: 2025.10.04 16:40:22 +0530 straight submissions of the Respondent herein. The Respondent herein has been asserting the earning capacity of the Appellant No. 1 and her financial status and in view of the same, a correct and right conclusion has been arrived at by the Ld. Trial Court while passing the impugned order regarding earning capacity of the Appellant No.1. The paragraph No.7 is required to be appreciated in a right and proper prospective, the half line as appearing in the said order "as she is well educated and is earning" does not indicate that the Ld. Trial Court while passing the impugned order was not mindful about the status of the Appellant No.1. The significance lies herein that according to the

appreciation of the Ld. Trial Court the Appellant No.1 in view of her education, age, earning capacity, her admission in past that she was employed and further no reasonable ground or compulsion to leave her job, the Ld. Trial Court wrote in her order that she is earning. Besides it, it is submitted that the word "is earning" could be a word "was earning" as per the circumstances appearing in the present matter, however, this has not caused any prejudice to the Appellants in any manner. The Appellants are trying their level best to make out a case out of no case on the basis of a half line only in the impugned order, a reasonable and harmonious interpretation of the same if arrived at in view of the other observations of the Ld. Trial Court it is imperative that the grounds as being pressed into qua the factum "is earning" or "was earning" has no relevance as otherwise the observations of Ld. Trial Court are based on the material available before it.

9. That a false assertion has been made by the Appellant No.1 that because she is engaged in taking care of minor child, she is not able to earn, this is a false and baseless assertion and has no substance therein. It is imperative that having a child is not a de-merit which prompts a person not to earn, inspite of having quality and capacity of earning, moreover, according to her own assertion, she being helped by her parents and other family members, falsity in the assertions of the Appellant No. 1 is looming large..."

(Emphasis supplied)

21. Conclusively, in light of the foregoing facts and circumstances, in the considered opinion of this Court, Ld. Trial Court erred in reaching the conclusion under the impugned order that appellant no. 1 was employed and earning at the relevant CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 32 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:40:26 +0530 point in time, especially when the evidence in respect of the same was wanting. Pertinent in respect of the foregoing to further note that during the course of proceedings before this Court, Ld. Counsel for the respondent has vehemently argued that mere birth of child is not a disqualification/demerit, which prompted appellant no. 1 not to work, despite being highly qualified. However, in the considered opinion of this Court, respondent cannot shy away from his responsibility to take care/prove for appellant no. 1 especially when the superior courts have avowed that a woman/wife cannot be denied maintenance merely because she was employed, however, had to quit her job for childcare. Needless in this regard to note that this Court is further wary that the superior courts¹⁰ have tirelessly averred that merely because the wife is capable of earning, cannot be a sole factor for refusing or reducing her claim for maintenance. Correspondingly, it is trite law¹¹, 'capability of earning' and 'actual earning' are two different requirements/aspects and as aforementioned, a mere capability of earning cannot be a determinative consideration to reduce or deny the claim for interim maintenance to a wife/spouse. In respect of the foregoing, this Court deems it pertinent to further

make a reference to the decision in Praveen Kumar v. Pooja Arya, Crl. Rev. P. 1373/2024, dated 13.05.2025, wherein the Hon'ble High Court of Delhi, being confronted with an akin situation, remarked, as under;

"7. In the present case, it is not in dispute that the parties have been residing separately, and the respondent/wife has been taking care of the minor child as a single parent. The material on record reflects that the respondent was previously employed as a guest teacher; however, owing to the compelling Sunita Kachwaha v. Anil Kachwaha, (2014) 16 SCC 715; and Arun Vats v. Pallavi Sharma, 2019 SCC Online Del 11817.

Shailja & Anr. v. Khobbanna (2018) 12 SCC 199 CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 33 of 39 ABHISHEK by ABHISHEK GOYAL GOYAL Date: 2025.10.04 16:40:30 +0530 responsibilities of single-handedly raising the child and the considerable distance of her workplace, she had to discontinue her employment. This Court finds the explanation both reasonable and justified. It is well settled that the responsibility of caregiving to a minor child falls disproportionately upon the parent with custody, often limiting their ability to pursue full-time employment, especially in cases where there is no family support also to take care of the child while the mother is at work. In such circumstances, the cessation of employment by the respondent cannot be viewed as voluntary abandonment of work, but as a consequence necessitated by the paramount duty of childcare.

8. This Court is therefore of the considered opinion that the learned Family Court has committed no error in appreciating the factual matrix and applying the correct legal principles, including the ratio laid down in Shailja v. Khobbana: (2018) 12 SCC 199, wherein the Hon'ble Supreme Court had held that mere capability to earn is not the same as actually earning, and being capable of earning alone is not a valid reason to reduce maintenance. It is not the potential earning capacity of the wife but her actual income at the relevant time that is to be considered while determining the amount of maintenance. Thus, the learned Family Court has rightly observed that there exists a material distinction between being "capable of earning" and "actually earning"..."

(Emphasis supplied)

22. Here, it is further pertinent to that the Ld. Counsel for the respondent/respondent has further strenuously asserted before this Court that appellant no. 1, despite having enormous amount of Rs. Rs. 25,00,000/- (Rupees Twenty Five Lakhs only) lying in her six Bank accounts, has deliberately failed to disclose the same, either before the Ld. Trial Court or even before this Court, disentitling her to claim any relief/indulgence. However, in this regard, this Court iterates that the respondent's said assertions cannot be profoundly delved into at this stage and that the same can only thoroughly evaluated after the parties have adduced their respective evidence(s) during the trial. On the CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 34 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:40:33 +0530 contrary, this Court reiterates that Hon'ble High Court of Delhi in Kanupriya Sharma v. State, (Supra.) unswervingly observed in this regard that serious disputed questions of facts, raised at the stage of determination of claim for interim maintenance, cannot be evaluated unless evidence in this regard is led. Correspondingly, as hereinunder observed, the relief of interim maintenance can be declined in favour of a wife, only under circumstances where the husband/respondent is able to demonstrate from undisputed evidence that she/the wife was gainfully employed at the relevant point in time, which is not the case here.

23. In so far as the contention of the Ld. Counsel for the respondent pertaining to deduction in his net monthly salary of Rs. 1,36,341/- (Rupees One Lakh Thirty Six Thousand Three Hundred and Forty One only) towards company case lease (Rs. 30,500/- (Rupees Thirty Thousand Five Hundred only) per month) and house loan/equal monthly instalments/EMI of Rs. 44,600/- (Rupees Forty Four Thousand and Six Hundred only) is concerned, this Court deems it pertinent to note that it is settled law¹² that only statutory mandatory deductions from the income of the husband are permissible and that no deduction is permissible for payment of LIC, home loan, instalments towards payment of loan for purchasing land or premium of policy of insurance. Reference in this regard is made to the decision of the Hon'ble High Court of Allahabad in Rana Pratap Singh v. Neetu Singh, 2024 SCC OnLine All 905, wherein the Hon'ble Court noted in unambiguous terms, as under;

"20. The Hon'ble Apex Court in Dr. Kulbhushan Kumar v. Smt. Raj Kumari, (1970) 3 SCC 129 has Dr. Kulbhushan Kumar v. Smt. Raj Kumari & Anr., (1970) 3 SCC 129.

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held that only compulsory statutory deductions as income tax can be reduced from the gross salary. No deduction is permissible for payment of LIC, home loan, instalments towards payment of loan for purchasing land or premium of policy of insurance.

21. Thus, the alleged deduction from the gross salary of the revisionist/husband due to payment for premium of insurance or instalment of plots purchased by him cannot be taken into consideration as no such deduction from gross salary is permissible under the law."

(Emphasis supplied)

24. Correspondingly, the Hon'ble High Court of Delhi in Chanchal Verma v. Anurag Verma, 2022 SCC OnLine Del 2993, in a situation of comparable nature, observed as under;

"32. It has been held categorically in the case of Nitin Sharma v. Sunita Sharma, 2021 SCC OnLine Del 694, that only statutory mandatory deductions from the income of the husband are permissible to be deducted for the purpose of computation of his income for the purpose of grant of maintenance. The observations of the Court read as follows:

"...24. In the opinion of this Court, while calculating the quantum of maintenance, the income has to be ascertained keeping in mind that the deductions only towards income tax and compulsory contributions like GPF, EPF etc. are permitted and no deductions towards house rent, electric charges, repayment of loan, LIC payments etc. are permitted..."

33. The court further reiterated what was held by the Hon'ble Punjab & Haryana High Court in the case of Seema v. Gourav Juneja, 2018 SCC OnLine P&H 3045 which is stated as under:

"13. In a nutshell, a husband cannot be allowed to shirk his responsibility of paying maintenance to his wife, minor child, and parents by availing loans and paying EMIs thereon, which would lead to a reduction of his carry home salary..."

34. Similarly in Dr. Kulbhushan Kunwar v. Raj Kumari, (1970) 3 SCC 129, the Hon'ble Supreme Court while deciding the fixation of rate of maintenance, had made the following observations:

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2025.10.04 16:40:40 +0530 "...19. It was further argued before us that the High Court went wrong in allowing maintenance at 25% of the income of the appellant as found by the Income Tax Department in assessment proceedings under the Income Tax Act. It was contended that not only should a deduction be made of income-tax but also of house rent, electricity charges, the expenses for maintaining a car and the contribution out of salary to the provident fund of the appellant. In our view some of these deductions are not allowed for the purpose of assessment of "free income" as envisaged by the Judicial Committee. Income Tax would certainly be deductible and so would contributions to the provident fund which have to be made compulsorily. No deduction is permissible for payment of house rent or electricity charges. The expenses for maintaining the car for the purpose of appellant's practice as a physician would be deductible only so far as allowed by the income-tax authorities i.e. in case the authorities found that it was necessary for the appellant to maintain a car..."

35. In the present case, on one hand, the husband was being allowed to create an asset i.e., a house and on the other, the wife was being denied maintenance without there being any material to prima facie substantiate that she was employed and having an income to sustain herself. The learned Trial Court also failed to take note of the fact that law mandates that the wife is entitled to the same status of living and amenities as enjoyed by her husband, as also observed by this Court in Sarita Bakshi v.

State, 2022SCC OnLine Del 1707."

(Emphasis supplied)

25. Consequently, in light of the foregoing, this Court unambiguously reiterates that no deduction(s) is/are permissible, while ascertaining the income of the husband, against the amounts expended towards the payment of LIC, home loan, home rental, instalments towards payment of loan/rent or premium of policy of insurance. Needless to reiterate that husband cannot shirk its responsibility of maintenance of his wife by seeking deduction towards such impermissible claims, CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 37 of 39 ABHISHEK GOYAL GOYAL Date:

2025.10.04 16:40:44 +0530 especially when the superior courts have continually observed 13, "the obligation of the husband to provide maintenance stands on a higher pedestal than the wife". Correspondingly, this Court deems it pertinent to note that in matrimonial dispute, there is generally a tendency on the part of the parties involved to hide their true income. Needless to mention that this Court is also conscious of the fact that it is a settled law¹⁴ that certain degree of guesswork in ascertainment of income of a spouse is permissible, considering a tendency of parties engrossed in a matrimonial conflict to disclose their incorrect, reduced or understated source(s) as well as quantum of income/earnings. In this regard, reference is made to the decision of the Hon'ble Supreme Court in Kiran Tomar v. State of U.P., 2022 SCC Online SC 1539 , wherein the Hon'ble Court held as under;

"10. On the first aspect, it is well-settled that income tax returns do not necessarily furnish an accurate guide of the real income. Particularly, when parties are engaged in a matrimonial conflict, there is a tendency to underestimate income. Hence, it is for the Family Court to determine on a holistic assessment of the evidence what would be the real income of the second respondent so as to enable the appellants to live in a condition commensurate with the status to which they were accustomed during the time when they were staying together. The two children are aged 17 and 15 years, respectively, and their needs have to be duly met."

(Emphasis supplied)

26. Ergo, in light of the foregoing observations as well as the material placed on record, this Court is of the considered opinion that the present appeal deserves to be allowed and the impugned order liable to be set aside/modified to the extent that Shamima Farooqui v. Shahid Khan, (2015) 5 SCC 705; and Chander Parkash v. Shila Rani, 1968 SCC Online Del 52.

Jyotsna Sofat v. Gaurav Sofat, 2010 SCC OnLine Del 3899; and Shailesh Gupta v. Renu, 2011 SCC Online Del 5329.

it rejects the claim of appellant no. 1 for interim maintenance. Consequently, in conspectus of the above and keeping in view the facts and circumstances of the present case, arguments addressed by/on behalf of the appellants and respondents, judgements relied upon, and written submissions filed before this Court, records of the Ld. Trial Court, liability of the respondent herein as well as his obligation towards the appellants, the order dated 31.08.2024/impugned order, passed by Ld. JMFC (Mahila Court)-04, Central, Tis Hazari Court in case titled as; 'Shikha Singh v. Saurabh Singh, Ct. Case No. 138/2023', PS. Prashad Nagar, is modified to the extent that the respondent would be now entitled to payment of interim maintenance of Rs.15,000/- (Rupees Fifteen Thousand only) per month in favour of appellant no. 1, in addition to Rs. 20,000/- (Rupees Twenty Thousand only) per month, directed to be paid by the respondent for the maintenance/look after of the minor child/appellant no. 2, from the date of filing of such application of interim maintenance. It is further directed that the appellant shall clear all the dues within a period of 06 (six) months from the date of this order as well as continue to pay/deposit the said interim maintenance amount to the appellants by 15th (fifteenth) day of every calendar month.

27. Accordingly, the present appeal stands disposed of in the above terms.

28. Trial Court Record be sent back along with a copy of this order/judgment with directions to proceed as per law.

29. Appeal file be consigned to record room after due ABHISHEK ABHISHEK compliance. GOYAL GOYAL Date: 2025.10.04 16:40:53 +0530 Announced in the open Court (Abhishek Goyal) on 04.10.2025. ASJ-03, Central District, Tis Hazari Courts, Delhi CA No. 436/2024 Shikha Singh & Anr. v. Saurabh Singh Page No. 39 of 39